



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

March 07, 2023

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 21114
(THIRD REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of small arms ammunition not packed in accordance with § 173.63(b)(2)(i) and (ii). This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.203(a) in that the special permit number need not be notated on the shipping paper for transportation by motor vehicle and rail freight; § 173.63(b)(2)(i) in that ammunition may be packed in inner bags; and § 173.63(b)(2)(ii) in that primers need not be protected from accidental initiation.
5. BASIS: This special permit is based on the application of Federal Cartridge Company dated January 11, 2023, and the application of Olin Winchester LLC dated January 13, 2023, submitted in accordance with § 107.105 and the public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Cartridges for weapons, inert projectile <i>or</i> Cartridges, small arms	1.4S	UN0012	N/A
Cartridges for weapons, blank <i>or</i> Cartridges, small arms, blank <i>or</i> Cartridges for tools, blank	1.4S	UN0014	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Combination packagings must be used and must conform to the following:

- (1) Inner Packaging: Bags, receptacles, or boxes.
- (2) Outer packaging: All outer packagings listed in § 173.62(c), Table 2, Packing Instruction 130 of the HMR are authorized.
- (3) The packaging must be tested and certified in accordance with Part 178.

b. TESTING: The packaged cartridges and shotshells must be capable of passing the following tests, performed in accordance with the UN Manual of Tests and Criteria:

- (1) The UN 6(d) unconfined package test; and
- (2) The UN 4(b)(ii) drop test, modified to a height of at least five meters.

c. REPACKAGING: For recipients of a grantee's original package meeting all requirements of paragraphs 7.a. and 7.b. above, limited modification is authorized to replace the original outer packaging with a strong outer packaging, provided that:

- (1) Inner packaging: As removed from the grantee's original package, and limited to boxes or receptacles only.
- (2) Outer packaging: strong outer packaging meeting the construction requirements of a standard in Part 178 Subpart L. The completed package need not be tested or certified to Part 178 Subpart M nor retested to paragraph 7.b. above. Additionally, if a fiberboard box is used as the strong outer packaging, the fiberboard box must:

- (i) Meet or exceed the standard for 275-pound test Mullen or 44 ECT; and
 - (ii) Be reinforced on all sides with clear plastic shipping wrap; or
 - (iii) Be overpacked in a fiberboard box.
- d. OPERATIONAL CONTROLS: Handgun cartridges may not exceed 45 caliber. Rifle cartridges may not exceed 358 caliber. Shotshells may not exceed 10 gauge.
- e. The maximum gross weight must not exceed 30 kg (66 pounds) per package.
- f. MARKING: The outer packaging, and overpack if used, must be marked in accordance with § 172.301(c).
- 8. SPECIAL PROVISIONS:
 - a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR. Inner packagings that are receptacles or boxes may be reoffered in a different strong outer packaging in accordance with paragraph 7.c. and all other provisions of this special permit and the HMR.
 - b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
- 9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, passenger-carrying aircraft, and cargo aircraft.
- 10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel used to transport packages covered by this special permit.
- 11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: VOS